

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR C61
HON. JENNIFER M. MCCARTNEY

Date: 09/11/2026

Courtroom Rules and Notices

The Court will continue to upload tentative rulings as they are completed. Please be sure to keep checking until 8:30 AM on the day of your hearing.

Written responses, oppositions, or filings that are filed later than 12:15 PM the day before the hearing on the motion will go on second call by the Court for the Court to have an opportunity to review any last-minute filings. If a party files a written response, opposition, or any filing after 12:15 PM on the day before the hearing, the party must ensure they are available for the Court's afternoon calendar the day of the hearing.

Submitting on tentative rulings: If all counsel/parties intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5261 – both counsel need to state they are submitting on the tentative. Please do not call the Department unless all parties submit to the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling, and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

#	Case Name	Tentative
12	30-2026-01569359 USCMF Joule La Floresta, LLC vs. Yazouri	The Court has read and considered the Plaintiff's Motion for Summary Judgment (ROA 41). The Court GRANTS the Plaintiff's Motion for Summary Judgment. The Plaintiff established that there is no triable issue of material fact or law at issue in this proceeding. Plaintiff points to the Request for Admissions, which was deemed admitted on 8/21/2026 (ROA 34), and the Defendant's own assertion in the Answer does not rise to the level of a legal affirmative defense for non-payment of rent. The Court finds for the Plaintiff, USCMF Joule La Floresta LLC, for possession of the property located at 420 La Crescenta Drive # 438, Brea, CA 92823, County of Orange. The lease is forfeited. A writ of possession shall be issued forthwith. The Court awards the Plaintiff a monetary judgment as follows: \$10,475.23 past-due rent \$19,985.04 holdover damages (4/1/26 to 9/11/26 = 164 days at \$121.86 per day) \$1,800 attorney's fees and costs

		Plaintiff's Counsel is ordered to prepare a UD-110 form consistent with the Court's order and file it with the Clerk's office today. Plaintiff is ordered to provide notice of entry of judgment.
13	30-2026-01570055 EQR-Sombra 2008 Limited Partnership vs. Lee	The Court has read and considered the Defendant's Motion to Vacate Judgment Filed on August 17, 2026 (ROA 54) and Plaintiff's Opposition (ROA 59). The Court takes Judicial Notice of the 8/12/2026 Minute Order (ROA 42), 8/18/2026 Minute Order (ROA 43), Judgment-Unlawful Detainer (ROA 45), and Notice of Entry of Judgment (ROA 49). Mr. Lee brings his motion pursuant to California Code of Civil Procedure section 473(b), which provides, in relevant part, that "[t]he court may, upon any terms as may be just, relieve a party or the party's legal representative from a judgment, dismissal, order, or other proceeding taken against the party through the party's mistake, inadvertence, surprise, or excusable neglect." Mr. Lee does not assert that the judgment or order at issue resulted from mistake, inadvertence, surprise, or excusable neglect. Instead, he seeks to revisit issues that were presented and adjudicated at trial. At the August 12, 2026 trial, Mr. Lee introduced Exhibit G, which is the same email attached to his motion to vacate, and argued that the email demonstrated his compliance with the notice to cure. The Court considered that evidence and argument but found that the evidence did not establish compliance with the notice to cure. Mr. Lee had the opportunity at trial to present evidence and legal arguments concerning his compliance with the notice to cure. He presented those arguments, and the Court rejected them. Section 473(b) does not provide a mechanism for a party to relitigate issues previously presented to and decided by the Court merely because the party disagrees with the result. Accordingly, the Court DENIES Mr. Lee's Motion to Vacate. The Court Clerk is to provide notice of the Court's ruling.
14	30-2020-01133177 15701 Village Way, L.P. vs. Alcaras	The Court has read and considered the Defendant's "Motion to Objection to the Memorandum of Costs After Judgment and to Dismiss the Case" (ROA 123) and Proof of Service by Mail (ROA 125). The Court takes Judicial Notice of the Claim of Exemption (ROA 105), 10/17/25 Minute Order (ROA 112), 11/14/25 Minute Order (ROA 114), 12/5/25 Minute Order (ROA 119), and 12/17/2026 Minute Order (ROA 120). The Defendant has not presented a legally cognizable motion challenging the Memorandum of Costs After Judgment. The Defendant previously filed a Claim of Exemption, which the Court considered and denied. In addition, the Defendant has not identified a legal basis or provided supporting facts sufficient to support the requested dismissal. Accordingly, the Defendant's Motion is DENIED.

		The Court Clerk is to provide notice of the Court's ruling.
15	30-2026-01592295 Cerni vs. Kirley	The Court has read and considered Kimberly Kirley's Motion to Quash Service of Summons (ROA 7). The Court takes Judicial Notice of the Court's Docket. No proof of service of summons has been filed in this matter by the Plaintiff. The Court GRANTS Ms. Kirley's Motion to Quash. The Court Clerk is to provide notice of the Court's ruling.
16	30-2026-01581097 Far West South Coast, Ltd. vs. Lopez	The Court has read and considered the Motion to Set Aside Default and Default Judgment & Quash Any Writ of Possession/Execution (ROA 61). The Court takes Judicial Notice of the Proof of Service of Summons (ROA 14), Proof of Service of Summons (ROA 12), Request for Entry of Default (ROA 21), Judgment-Unlawful Detainer (ROA 51), and Notice of Entry of Judgment (ROA 55). A review of the Proof of Service indicates that Hannia Belmontes mailed the Motion to Set Aside Judgment on 8/14/2026 to Danielle T. Kussler at 2040 Main Street, Suite 500, Irvine, CA 92614. This Motion was not filed with the Court until 9/2/2026, so the Court would not have assigned a date on 8/14/2026. The Defendants also signed the Motion on 8/14/2026. ROA 21 shows that the Defendants were mailed notice of the request to enter default on 7/29/2026. Additionally, Judgment on this matter was not entered until 8/31/2026. The Defendant failed to provide notice and service of the Motion pursuant to California Code of Civil Procedure § 1005 on the Plaintiff. The Court of Appeal held that a litigant in propria persona is subject to the same restrictive rules of procedure as an attorney. (<i>Kabbe v. Miller</i> (1990) 226 Cal.App. 3d 93, 98.) Furthermore, the Defendants signed this motion on 8/14/2026 but waited to file it with the Court until 9/2/2026. The Court finds that, at minimum, the Defendants were aware of their default status since August 14, 2026, and inexcusably neglected these proceedings by failing to notify the Court or take any action until 9/2/2026. The Court finds that the Defendants failed to meet their burden under California Code of Civil Procedure § 473(b). Therefore, the Court DENIES the Defendants' Motion to Set Aside Default and Default Judgment. The Court Clerk is to notify the Orange County Sheriff's Department that they may proceed with the lockout forthwith. The Court Clerk is to provide notice of the Court's ruling.

17	30-2026-01592179 Alicia Viejo Apartments, LLC vs. Guevara	The Court has read and considered the Defendant's Demurrer to the Complaint (ROA 12) and the Complaint (ROA 2). The Court OVERRULES the Demurrer. The Defendant is to file an Answer within 5 calendar days. The Plaintiff is ordered to provide notice of the Court's ruling.
18	30-2026-01585987 622 S. Velare Street Associates vs. Galvan	The Court has read and considered the Defendant's Motion for Summary Judgment (ROA 39). As of 10:12 PM on 9/10/2026, no response has been filed by the Plaintiff. The California Supreme Court held, "if the court concludes that the plaintiff's evidence or inferences raise a triable issue of material fact, it must conclude its consideration and deny the defendants' motion." (<i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 856.) Here, the Plaintiff submitted no evidence or argument to counter the assertions in the Defendant's motion. Plaintiff's own complaint shows that the lease agreement claims an exemption to the Tenant Protection Act of 2019 ("TPA") but the Complaint concedes that the TPA applies to the tenancy. Because the Tenant did not receive proper TPA notice, no material issues of triable fact or law remain. The Court finds judgment for possession of the property located at 620 S. Velare Street #206, Anaheim, CA 92804, County of Orange, for the Defendants, Maria Galvan and Victor Carillo. Defendants are the prevailing party and may claim attorney's fees and costs associated with the lawsuit by motion or oral motion. Mr. Gibson is ordered to prepare a UD-110 consistent with the Court's order and serve notice of the Court's ruling.